

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

EZRA SHOLOM,

Plaintiff,

v.

THE CITY OF NEW YORK, a municipal entity,

Defendant.

INDEX NO.

SUMMONS

Plaintiff designates County of Bronx as the County of Venue based on the location where the claim arose.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon plaintiff's attorney, at his address stated below, an answer to the attached complaint.

If this summons was personally served upon you in the State of New York, the answer must be served within 20 days after such service of the summons, excluding the date of service.

If the summons was not personally delivered to you within the State of New York, the answer must be served within 30 days after service of the summons is complete as provided by law.

If you do not serve an answer to the attached complaint within the applicable time limitation, a judgment may be entered against you, by plaintiff, for the relief demanded in the complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for the County of Bronx. This action is brought in the County of Bronx because it is the place in which the claim arose.

Dated: January 31, 2022
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400

By: 
David B. Rankin

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
EZRA SHOLOM,

Plaintiff,

**VERIFIED COMPLAINT AND
DEMAND FOR A JURY TRIAL**

Index No.

-v-

THE CITY OF NEW YORK, a municipal entity,

Defendant.
-----X

Plaintiff Ezra Sholom, by his attorneys, Beldock Levine and Hoffman LLP, for his
Complaint, alleges as follows:

INTRODUCTION

1. This is a civil rights action brought to vindicate Plaintiff's rights under the Constitution of the State of New York, the laws of the State of New York, and common law.

2. Plaintiff's rights were violated when police officers employed by Defendant THE CITY OF NEW YORK, and acting under color of law, unconstitutionally and without any legal basis used gratuitous, unlawful force against Plaintiff and arrested him without justification or probable cause. By reason of Defendant's actions, through their employees, officers, and/or agents, Plaintiff's rights were violated, and he sustained physical and other injuries.

3. Plaintiff seeks an award of compensatory and punitive damages in addition to attorneys' fees.

PARTIES

4. Plaintiff, Ezra Sholom, is and was at all times relevant to this action a resident of the County of New York, State of New York.

5. Defendant the City of New York ("City") is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It has all the

powers vested in it by the laws of the State of New York, the City of New York and the Charter of the City of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD. At all relevant times herein, Defendant City was the employer of the police officers whose conduct caused Plaintiff's injuries.

JURISDICTION

6. This action is brought pursuant to the Constitution of the State of New York and the laws of the State of New York.

7. Plaintiff has complied with the statutory requirements of GML § 50-e and attended an examination pursuant to GML § 50-h prior to commencing suit.

VENUE

8. Venue is properly laid in the Supreme Court of the State of New York, County of Bronx as the incident occurred in Bronx County.

JURY DEMAND

9. Plaintiff demands a trial by jury in this action on each and every one of his damage claims.

STATEMENT OF FACTS

10. On June 4, 2020, between approximately 7:40 p.m. to 8:00 p.m., at or around East 136th Street and Brook Avenue in the Bronx, Mr. Sholom was attending a protest when members of the New York Police Department ("NYPD") assaulted and arrested him without justification or probable cause.

11. NYPD officers indiscriminately struck Mr. Sholom with batons and sprayed him with pepper spray and/or mace.

12. Plaintiff complained about the spray in his eyes, but officers did not provide him with immediate medical care.

13. During the arrest, officers pushed Mr. Sholom to the ground, where an officer positioned his knee between Mr. Sholom's shoulder blade and spine.

14. NYPD officers placed extremely tight zipties/flex-cuffs on Mr. Sholom's wrists, causing nerve damage and other injury.

15. In addition, Mr. Sholom's glasses were knocked off and damaged during the arrest.

16. Mr. Sholom was transported to a precinct and spent hours in custody before he was finally issued a summons and released.

17. The summons issued to Mr. Sholom was dismissed before the court date.

18. As a result of the officers' unlawful conduct, Mr. Sholom was deprived of his liberty and sustained nerve damage and other injuries.

19. The NYPD members whose actions caused injury to Mr. Sholom were acting under color of law as agents, employees and/or officers of Defendant THE CITY OF NEW YORK.

FIRST CLAIM FOR RELIEF
ASSAULT AND BATTERY

20. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

21. By the actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, did inflict assault and battery upon Plaintiff.

22. The acts and conduct of Defendant, through its employees, agents and/or officers, were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

23. NYPD officers assaulted Plaintiff without cause while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

24. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain, costs and expenses, and was otherwise damaged and injured.

SECOND CLAIM FOR RELIEF
FALSE ARREST AND FALSE IMPRISONMENT

25. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

26. By the actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, caused to be falsely arrested or falsely arrested Plaintiff, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so.

27. Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, caused to be falsely detained and imprisoned or falsely detained and imprisoned Plaintiff without legal justification, without the consent of Plaintiff, and while Plaintiff was aware of such detention and imprisonment.

28. The acts and conduct of Defendant, through its employees, agents and/or officers were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

29. NYPD officers arrested, detained, and imprisoned Plaintiff without probable cause while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

30. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain, costs and expenses, and was otherwise damaged and injured.

THIRD CLAIM FOR RELIEF
TRESPASS TO CHATTELS

31. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

32. By the actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, physically and intentionally interfered with Plaintiff's personal property, including his glasses, and with Plaintiff's right to possession thereof.

33. NYPD officers unlawfully interfered with Plaintiff's property and property rights while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

34. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain, costs and expenses, and was otherwise damaged and injured.

FOURTH CLAIM FOR RELIEF
CONVERSION

35. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

36. By the actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, intentionally and without authority, assumed and exercised control over Plaintiff's personal property and interfered with Plaintiff's right to possession thereof, including by causing damage to Plaintiff's glasses.

37. NYPD officers unlawfully interfered with Plaintiff's property and property rights while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

38. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain, costs and expenses, and was otherwise damaged and injured.

FIFTH CLAIM FOR RELIEF
NEGLIGENCE

39. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

40. Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, violated its duty of care when it assumed custody of Plaintiff and negligently caused injuries and damage to Plaintiff. The acts and conduct of Defendant, through its employees, agents and/or officers, were the direct and proximate cause of injury and damage to Plaintiff and

violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

41. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain, costs and expenses, and was otherwise damaged and injured.

SIXTH CLAIM FOR RELIEF
NEGLIGENT HIRING, SCREENING, RETENTION

42. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

43. Defendant THE CITY OF NEW YORK negligently hired, screened, and retained the NYPD officers who engaged in the conduct underlying Plaintiff's claims. The acts and conduct of Defendant in negligently hiring, screening, and retaining its police officers were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

44. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain, costs and expenses, and was otherwise damaged and injured.

SEVENTH CLAIM FOR RELIEF
NEGLIGENT SUPERVISION AND TRAINING

45. Defendant CITY OF NEW YORK and its agents negligently trained and supervised members of the NYPD as to the January 2020 amendment to CPL § 150.20. This failure inevitably resulted in NYPD officers continuing to make arrests for violations in the same manner as they would crimes, even though it was clear the legislature had the intent to bar such arrests.

46. The acts and conduct of Defendant were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

47. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain, costs and expenses, and was otherwise damaged and injured.

EIGHTH CLAIM FOR RELIEF
ABUSE OF PROCESS

48. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

49. By the conduct and actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, employed regularly issued process against Plaintiff compelling the performance or forbearance of prescribed acts. The purpose of activating the process was intent to harm Plaintiff without economic or social excuse or justification, and to seek a collateral advantage or corresponding detriment to Plaintiff, which was outside the legitimate ends of the process.

50. By the actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, engaged in extreme and outrageous conduct, which intentionally and/or negligently caused injury to plaintiff. The acts and conduct of Defendant, through its employees, agents and/or officers, were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

51. NYPD officers acted with extreme and outrageous conduct while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

52. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain, costs and expenses, and was otherwise damaged and injured.

NINTH CLAIM FOR RELIEF
DENIAL OR DELAY OF MEDICAL CARE AND/OR MEDICATION

53. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

54. Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, denied and/or delayed providing Plaintiff reasonable, good faith medical attention while he was in custody of NYPD members.

55. As a result, Plaintiff suffered serious injury or significant exacerbation of injury.

56. Defendant's conduct violated New York Civil Rights Law Section 28.

TENTH CLAIM FOR RELIEF
VIOLATIONS OF THE NEW YORK STATE CONSTITUTION

57. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

58. Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers subjected Plaintiff to the foregoing acts and omissions without due process of law, thereby depriving Plaintiff of his rights, privileges, and immunities secured by Article 1, §§ 8, 9, 11, and 12 of the New York State Constitution, including, without limitation, the following deprivations of rights, privileges, and immunities:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment and from being wrongfully detained without cause or legal justification, and of which Plaintiff was aware and did not consent;
- iv. freedom from deprivation of liberty without due process of law;

- v. freedom from deprivation of property without due process of law;
- vi. freedom from deprivation of liberty of speech; and
- vii. freedom from deprivation of the right to assemble.

59. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain, costs and expenses, and was otherwise damaged and injured.

WHEREFORE, Plaintiff demands judgment against Defendant THE CITY OF NEW YORK and prays for relief as follows:

- a. that he be compensated for violation of his rights, pain, suffering, mental anguish and humiliation; and
- b. that he be awarded punitive damages; and
- c. that he be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. for such other further and different relief as to the Court may deem just and proper.

Dated: January 31, 2022
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP



By: _____
David B. Rankin

99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400

VERIFICATION

Ezra Sholom, being duly sworn, deposes and says: I am the plaintiff in the within action; I have read the foregoing Verified Complaint and know the contents thereof as they relate to me; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true.

Dated: January 31, 2022
New York, New York


EZRA SHOLOM

STATE OF NEW YORK)

: ss.:

COUNTY OF NEW YORK)

On this 31st day of JANUARY, 2022, before me personally came EZRA SHOLOM, to me known and known to me to be the individual described in and who executed the foregoing instrument, and s/he acknowledged to me that s/he executed the same.


Notary Public

SCELECIA R. HARWOOD
NOTARY PUBLIC-STATE OF NEW YORK
No. 01HA6412390
Qualified in Bronx County
My Commission Expires 12-28-2024